IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for Restitutio in integrum/Revision in terms of Article 138 of the Constitution.

I.M.G. Sarath Chandranayake,
Divisional Fisheries Officer,
Fisheries Department,
Puttlam.

CA/RII/30/2024
High Court Puttalam - APP/08/2018
MC. Puttalam – 02778/P2/K

Complainant

Vs.

1. Ajantha Kumara Dias,
   Sinnakudiruppuwa,
   Kalpitiya.

2. Ronald Vegine,
   St. Maria Road,
   Kalpitiya.

3. Anthony Sampath Milinda,
   Anawasala,
   Kalpitiya.

4. Anthony Nishantha Susei,
   Andankanni,
   Alankudawa.

5. Jorge Steven Woshinton Fernando,
   St. Maria Road,
   Kalpitiya.

6. Jorge Michale Anthony Nikison,
   Ammathottam,
   Palliwasalthurei,
   Kalpitiya.

Accused

AND BETWEEN

1. Ajantha Kumara Dias,
   Sinnakudiruppuwa,
   Kalpitiya,

2. Ronald Vegine,
   St. Maria Road,
   Kalpitiya.

3. Anthony Sampath Milinda,
   Anawasala,
   Kalpitiya.

4. Anthony Nishantha Susei,
   Andankanni,
   Alankudawa.

5. Jorge Steven Woshinton Fernando,
   St. Maria Road,
   Kalpitiya.

6. Jorge Michale Anthony Nikison,
   Ammathottam,
   Palliwasalthurei,
   Kalpitiya.

Accused-Appellant

Vs.

1. I.M.G. Sarath Chandranayake,
   Divisional Fisheries Officer,
   Fisheries Department,
   Puttlam.

2. Honorable Attorney General,
   Attorney General's Department,
   Colombo 12.

Complainant-Respondent

AND NOW BETWEEN

1. KRISH SEA FOOD (PVT) LTD.,
   No.130/4/A,

St. Mary's Road,
Kalpitiya.

1st Petitioner

2. Ronald Vegine,
St. Maria Road,
Kalpitiya.

2nd Accused-Appellant-Petitioner

- **Vs.** –

1. I.M.G. Sarath Chandranayake,
Divisional Fisheries Officer,
Fisheries Department,
Puttlam.

Complainant-Respondent-Respondents

1. Honorable Attorney General,
Attorney General's Department,
Colombo 12.

2nd Respondent

Before: **R. Gurusinghe J.**

&

Dr. Sumudu Premachandra J.

Counsel: J.M.Wijebandara, AAL with Ms. Dimithri Pandiwita, AAL for the Petitioner.
Malik Azees, SC for the 1st and 2nd Respondents.

Written Submissions: By the Petitioner filed on 16/11/2026
By the Respondents – Not filed.

Argued On: 30/01/2026.

Order On: 27/03/2026.

Dr. Sumudu Premachandra J.

1] The 1st Petitioner, Krish Sea Food (Pvt) Ltd, and the 2nd Accused-Appellant-Petitioner challenge the orders of the Magistrate's Court of Puttalam (dated 26/10/2018) and the High Court of Puttalam (dated 25/07/2019). The Petitioners argue that despite possessing a valid license for possession and sale (Annexure X), the company was not made a party to the initial case, and the Magistrate imposed a significant financial penalty, confiscating the value of the goods at Rs 5,250,000 without properly considering the evidence or the legal status of the permit holders.

2] The core of the legal challenge rests on the argument that the charge sheet was bad in law. The Petitioners contend that the gazette notification cited (No. 1665/16) refers only to license forms and does not stipulate a punishable offence under the sections charged. Furthermore, they argue there was no evidence to prove whether the sea urchins were "dry or wet," a material fact for the charge, nor was there evidence regarding the vehicle used for transportation. To support these claims, the petition incorporates a comprehensive list of trial documents, including the Certificate of Incorporation (P1), Form 1 (P2), the relevant Gazette (P3), and the complete case record from the Magistrate Court containing the Plaint (X2), B Report (X3), Charge Sheet (X5), and Prosecution Evidence (X7).

3] The Petitioners explain that they were originally advised to appeal to the Court of Appeal but were led into the wrong forum, filing case CA(PHC)135/2019, which was eventually withdrawn in late 2023.

4] The Petitioners seek to set aside the previous convictions and sentences, arguing that the High Court failed to consider the validity of the license and that the 1st Petitioner (the permit holder) was never given a fair hearing. They rely on the Judgments of the Magistrate Court (X9) and High Court (X10) to demonstrate that the lower courts erred in law by failing to distinguish between acting "illegally" versus acting "in violation of permit terms." The petition requests that the court invoke its revisionary powers to rectify a manifest injustice.

5] Thus, the Accused Petitioners pray that this Court be pleased to:-

a) Issue notice on the Respondents;

b) Revise and/or set aside the order dated 26/10/2018 of the Honourable Magistrate of Puttalam in the case bearing No. 02778/P2/K;

c) Revise and/or set aside the order dated 25/07/2019 of the Honourable Puttalam High Court Judge in the case bearing No. APP/08/2018;

d) Call for the Record of MC Puttalam case bearing No.2778/P2/K and PHC Puttalam case bearing No. APP/08/2018;

e) If the case record of the case bearing No. CA (PHC) 135/2019 is not yet transmitted from the registry of the Court of Appeal Registrar of Court Of Appeal may be directed to retain the case record until the final determination of this application;

f) Make an order to restore the status quo ante to the beginning of the said cases;

g) Make order acquitting and discharging all accused including this accused petitioner;

h) Grant costs; and

i) Grant such other and further reliefs which Your Lordships' Court may seem meet.

6] The Respondents (including the Divisional Fisheries Officer and the Attorney General) move to dismiss a petition for restitutio in integrum. They raise a primary preliminary objection based on the availability of alternative remedies, arguing that the Petitioner had ample opportunity to seek relief through a revision application but failed to do so.

7] On the merits, the document details a 2015 maritime enforcement action where the Sri Lanka Navy arrested six individuals for transporting 932 kilograms of dry urchins from India without a valid license. Although the accused were initially discharged in 2016, the case was reopened in 2017, leading to a trial where they were charged under the Fisheries and Aquatic Resources Act. The Respondents argue that the license produced by the defense was invalid for this specific act, as it only authorized the transportation of "wet unprocessed sea cucumber" by a different boat. Maintaining that the prosecution's evidence was

consistent and the charge sheet caused no prejudice or failure of justice, the Respondents pray for the dismissal of the petition with costs.

8] The merits of the case are now to be considered. When this matter was taken up for argument on 30/01/2026, the learned State Counsel raised a preliminary objection in line with the recent decision of His Lordship Samayawardhena, J., which is ***W.T. S. Nilantha Fernando vs P.M.S. Nilanthi Perera***, SC/APPEAL/65/2025, Decided on: 10.10.2025. In that case, His Lordship noted as follows;

> "*In sum, under section 9(a) of Act No. 19 of 1990, where the Provincial High Court pronounces its final order, judgment, decree or sentence in the exercise of its appellate jurisdiction in terms of Article 154P(3)(b) of the Constitution, section 3 of Act No. 19 of 1990, or any other law, an appeal lies to the Supreme Court and not to the Court of Appeal. Conversely, under section 9(b) read with section 11(1) of Act No. 19 of 1990, where the Provincial High Court pronounces its final order, judgment or sentence in the exercise of its original jurisdiction in terms of Article 154P(3)(a), Article 154P(4) of the Constitution, or any other law, an appeal lies to the Court of Appeal and not to the Supreme Court*"

9] In ***Wickramasekera v. Officer-in-Charge, Police Station, Ampara*** [2004] 1 Sri LR 257, the Court held;

> *"The Court of Appeal does not have appellate jurisdiction in terms of Article 138(1) of the Constitution read with Article 154P(6) in respect of decisions of the Provincial High Court made in the exercise of its appellate jurisdiction and it is the Supreme Court that has the jurisdiction in respect of appeals from the Provincial High Court as set out in section 9 of the High Court of the Provinces (Special Provisions) Act, No. 19 of 1990."*

10] In the instant case, the appeal is lodged to the Puttalam High Court bearing No. APP/08/2018. By that appeal, the Petitioners (Appellants in that case) sought to set aside the Puttalam Magistrate's Court case bearing No 02778/15/K. Thus, the impugned High Court order was made clearly exercising the appellate jurisdiction of the High Court, and an appeal lies to the Supreme Court and not to the Court of Appeal. Thus, it is seen that the Petitioners initially filed CA(PHC)135/2019 and subsequently withdrew. Thereafter, this revision application is filed in the same forum.

11] After extensive consideration in ***W.T. S. Nilantha Fernando vs P.M.S. Nilanthi Perera.*** (supra) His Lordship Samayawardhena, J. has stressed with regard to the jurisdiction of the Court of Appeal as follows;

"Hence, I hold that the Court of Appeal has no jurisdiction, whether by way of final appeal, revision, or restitutio in integrum, to review the judgments or orders of the Provincial High Court, whether in the exercise of its appellate jurisdiction under Act No. 19 of 1990, as amended by Act No. 54 of 2006, or in the exercise of its original jurisdiction under Act No. 10 of 1996. Such jurisdiction is vested exclusively in the Supreme Court."

"After the introduction of the Provincial High Courts by the 13th Amendment to the Constitution, the Court of Appeal and the Provincial High Court have been vested with concurrent appellate jurisdiction. This was emphasised in all leading cases including Swasthika Textile Industries Ltd v. Thantrige Dayaratne [1993] 2 Sri LR 348, Gunaratne v. Thambinayagam [1993] 2 Sri LR 355 and Abeywardene v. Ajith De Silva [1998] 1 Sri LR 134."

12] It was further held in the same judgment that;

"A party dissatisfied with a judgment of the Provincial High Court cannot create a third tier of appellate scrutiny by describing the route as revision or restitutio in integrum. In the impugned order, the Court of Appeal, following Gunawardane v. Muthukumarana [2020] 3 Sri LR 306, held that such a party may invoke its revisionary jurisdiction on the basis that it is distinct from its appellate jurisdiction. I am unable to agree with that view."

13] The preliminary objection is to the jurisdiction raised by the State, which lies on the above premises. The learned senior counsel has made an extensive written submission and relies on ***Gunawardane v. Muthukumarana*** [2020] 3 Sri LR 306, the judgment of Aluwihare PC. J. It is clear that when considering ***W.T. S. Nilantha Fernando vs P.M.S. Nilanthi Perera.*** (supra) , His Lordship Samayawardhena has clearly ousted the third tier of appellate scrutiny by describing the route as revision or restitutio in integrum. In this regard we have two competing judgments and the learned senior counsel for the Petitioner is urged to follow ***Gunawardane v. Muthukumarana*** [2020] 3 Sri LR 306. If ***Gunawardane v. Muthukumarana*** [2020] 3 Sri LR 306 was not considered in ***W.T. S. Nilantha Fernando vs P.M.S. Nilanthi Perera,*** this court would have considered and followed ***Gunawardane v. Muthukumarana*** instead ***W.T. S. Nilantha FFernando vsP.M.S. Nilanthi Perera*** . Since it was deeply considered and the opinion of Their Lordships was not to have a third tier of appellate scrutiny by describing the route as revision or restitutio in integrum, we uphold the preliminary objection of the State.

14] Despite the above stance, I would like to consider the substantial merits of this case. The Petitioners challenge a prior conviction, arguing that the Magistrate's Court and the Puttalam High Court erred by basing their judgments

on a withdrawn and incorrect charge sheet. They assert that while they were originally accused of transporting "dry sea urchins" by sea, the prosecution had previously withdrawn that specific charge and filed a fresh one. Consequently, they argue the conviction is "bad in law" because the court failed to evaluate evidence under the correct legal framework, ignored valid licenses produced by the suspects, and failed to account for the fact that no physical evidence (productions) was marked by the testifying Navy and Fisheries officers.

15]The Petitioners argue the charges violate the Fisheries and Aquatic Resources Act No. 2 of 1996, claiming that the referenced Gazette (1665/16) does not stipulate a punishable offense for the conduct alleged. Furthermore, they contend the conviction is "repugnant" to Section 238 of the Code of Criminal Procedure, as the Magistrate allegedly concluded guilt on a defunct charge sheet without duly weighing the contradictions and omissions in the prosecution's case.

16] Section 268 of the Criminal Procedure Code enacts as follows;

> *"The Supreme Court or the Court of Appeal may, whether there be an appeal or not, set aside any conviction had on evidence not wholly recorded by the Magistrate before whom the conviction was had, if such court is of opinion that the accused has been materially prejudiced thereby, and may order a new trial."*

17] The above section could be applied when the accused has been materially prejudiced, and the burden squarely lies with the accused. In ***Rajesh Gupta Vs. The State of Bihar*** [Criminal Appeal (SJ) No.308 of 2011; Criminal Appeal (SJ) No 247 of 2011] Indian High Court of Patna held thus,

> *"…the object of the trial is to mete out justice and to convict the guilty and protect the innocent, the trial should be research for the truth and not about over technicalities and must be concluded under such rules as will protect the innocent and punish the guilty."*

18] Thus, mere technicalities are not enough to topple the judgment. Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka clearly imposes that the technicalities cannot be taken if not prejudiced to the substantial rights of the accused and enacts as:

> *" ..... Provided that no judgement, decree or order of any court shall be reversed or varied on account of any error, defect or irregularity, which has not prejudiced the substantial rights of the parties or occasioned a failure of justice".*

19] Moreover, according to section 436 of the Code of Criminal Procedure Act No. 15 of 1979, it shows that if there is no failure of justice, the judgment passed by a competent court should not be reversed. It says;

> *"Subject to the provisions herein before contained any judgment passed by a court of competent jurisdiction shall not be reversed or altered on appeal or revision on account –*
> *(a) of any error, omission, or irregularity in the complaint, summons, warrant, charge, judgment, summing up, or other proceedings before or during trial or in any inquiry or other proceedings under this Code; or*
> *(b) of the want of any sanction required by section 135, unless such error, omission irregularity, or want has occasioned a failure of justice. "*

20] According to section 456A of the Code of Criminal Procedure Act No. 15 of 1979, this position further reiterates as;

> *"the failure to comply with any provision of this code shall not affect or be deemed to have affected the validity of any complaint, committal or indictment or the admissibility of any evidence unless such failure has occasioned a substantial miscarriage of justice ".*

21] When turned into case laws, in the case of ***Naval Kishore Singh Vs. State of Bihar***, AIR 2004 SC 4421], "the Indian Supreme Court refused to consider plea especially when the accused was not able to show that he was in any way prejudiced by such irregular procedure."

22] Further, the Canadian Supreme Court in ***R V Sheppard*** [2002]1 S.C.R. 869, held that what is materially prejudiced as;

> *"the appellate court is not given the power to intervene simply because it thinks the trial court did a poor job at of expressing itself in fact the duty goes no further than to render a decision which having regard to the particular circumstances of the case is reasonably intelligible to the parties and provides the basis for meaningful appellate review of the correctness of the trial judge's decision. In the words of the Supreme Court, to quash a decision on the basis of inadequacy of reasons the appellant must show not only that there is deficiency in the reasons but that this deficiency has occasioned prejudice to the exercise of his or her legal right to an appeal in a criminal case."*

23] In the case of ***Elal Jayantha Vs Officer-in-charge, Police station Panadura*** 1986, 1 SLR 334, it was held that;

"Although the correct procedure had not been followed yet no substantial prejudice had not been caused nor a failure of justice occasioned. Further four years had elapsed and sending the case back would cause hardship".

24] In this instant case, the Petitioners were properly charged before the Magistrate's court, and they were represented by a counsel. After a lengthy trial, the learned Magistrate evaluated the evidence and convicted the accused-Petitioners of the charge. On careful perusal, it is clear that all the fair trial principles had been observed, and the Accused-Petitioners have not been materially prejudiced. It was seen that the charge sheet was clear and that the accused were not misled during the trial, as evidenced by their ability to formulate a defense and provide dock statements.

25] Considering Article 138 of the Constitution and Section 436 of the Code of Criminal Procedure Act, the court thinks that any technical errors in a charge sheet should not result in a reversal of judgment unless a "failure of justice" has occurred. Thus, the impugned orders of the Magistrate and the High Court judge cannot be assailed.

26] The situation amply demonstrated the fact that neither the rights of the Petitioners nor the omission of a trial judge has occasioned a failure of justice for a substantial miscarriage of justice.

27] Thus, the application is dismissed. No costs.

JUDGE OF THE COURT OF APPEAL

R. GURUSINGHE J.

I agree

JUDGE OF THE COURT OF APPEAL